

24STCV22098 24STCV22098

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-06-23
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Case Number: 24STCV22098 Hearing Date: June 23, 2026 Dept: 506

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR THE

COUNTY OF LOS ANGELES - CENTRAL DISTRICT

KATIE ANNA SMITH,

Plaintiff,

vs.

AMERICAN HONDA MOTOR CO., INC.,

Defendant.

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CASE NO.: 24STCV22098

[TENTATIVE] ORDER GRANTING MOTION TO COMPEL

DEPOSITION

Dept. 506

8:30 a.m.

June 23, 2026

On August 29, 2024, Plaintiff

Katie Anna Smith filed this action against Defendant American Honda Motor Co. Inc.

On

May 26, 2026, Defendant filed a motion to compel Plaintiff's deposition.

If

a party to the action fails to appear for examination without making a proper objection,

the party noticing the deposition may move to compel the deponent's attendance and

testimony. (Code Civ. Proc., § 20205.450,

subd. (a).) Section 2025.410 provides for

written objections to a deposition notice “that does not comply with Article 2 (commencing

with Section 2025.210).” (Code Civ. Proc.,

§ 2025.410., subd. (a).)

Plaintiff’s

objections stated, in bold and underlined font, “Neither Plaintiff nor Plaintiff’s

counsel are available on the unilaterally noticed date. Therefore, neither the deponent, nor their counsel

will appear for deposition on April 9, 2026.”

(Motion, Ex. B; see Opposition at pp. 1-3.) This is not a proper objection under Section 2025.410. The Court is guessing that Plaintiff’s counsel

subscribes to the common belief that depositions cannot be noticed until after a

date is agreed on by the parties and that to do otherwise is to improperly “unilaterally”

set the deposition. It is not improper to

unilaterally pick a date. Plaintiff’s other

option was to move for a protective order directing that the deposition be taken

at a different time, but she did not. (See

Code Civ. Proc., § 2025.420, subd. (b)(2).)

On

June 9, 2026, the parties agreed to July 23, 2026 for Plaintiff’s deposition. (Reply at p. 2.) Nevertheless, the motion is not moot because the

deposition has not yet occurred, and Defendant seeks sanctions.

The

motion is GRANTED. Plaintiff is ordered to

appear for deposition within 45 days.

The

request for sanctions is also granted. Plaintiff

and counsel, jointly and severally, are ordered to pay total sanctions of \$1,815.00

to Defendant within 45 days.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at

indicating intention to submit. If all parties

in the case submit on the tentative ruling, no appearances before the Court are

required unless a companion hearing (for example, a Case Management Conference)

is also on calendar.

Dated this 23rd day of June 2026

Hon. Thomas D. Long

Judge of the Superior

Court